

**PERFORMANCE WORK STATEMENT FOR
SCHEDULED FUEL BARGE TRANSPORTATION SERVICE IN GULF REGION**

01 April 2027



Prepared by

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SECTION 1 SCOPE

1.1. OVERVIEW

This contract covers the transportation of Department of War-owned bulk Jet A Aviation Fuel (JAA), Jet Propellant 5 (JP5), and F76 Marine Diesel by tug and barge between all ordered United States ports and points on the Gulf of America and the Lower Mississippi River and their connecting waterway and tributaries, including those specified in Appendix A. However, Appendix A does not represent all Loading/Discharging points and may change as fuel procurement award patterns change.

1.1.1. New and Historical Location Information

The Defense Logistics Agency Energy Americas East Office, Houston (DLA Energy AME) Loading/Discharging (Receiving) locations are provided in Appendix A as existing and historical information. Appendix A does not represent all Loading/Discharging points and may change as fuel procurement award patterns change.

1.1.2. Scheduling

The Government will schedule the pick-up and delivery of the identified fuels from, to, and between the operational areas referenced in Appendix A without restriction. The Government reserves the right to change the schedule at any time to include standing by at an origin, destination or intermediate point as specified by the Government.

1.1.3. Hours of Operation

Contractor supplied equipment and crews in support of this service must be available exclusively to the Government at all times, 24 hours per day, 7 days per week, for transporting cargo to and between the points stipulated.

SECTION 2 GENERAL REQUIREMENTS

2.1. Contractor Furnished Equipment and Crew

The Contractor shall furnish all supplies, materials, equipment, and personnel necessary to perform the services, incidental to the operation of the equipment listed below. If available, the Government may provide equipment at locations for contractor use but is not guaranteed. The contractor shall arrive at required locations with all equipment ready for loading and offloading of cargo.

2.2. Tank Barge and Tug Requirements

The term tank barge means a non-self-propelled tank vessel. A tank barge is constructed or adapted primarily to carry liquid, solid or gaseous commodities or cargos in bulk through rivers and inland waterways and may occasionally carry commodities or cargoes through points on the Gulf of America and the Lower Mississippi River and their connecting waterway and tributaries in transit from one inland waterway to another. The commodities or cargoes transported in a tank barge are in direct contact with the tank interior. The term tank barge may also be referred to as “barge” and tank barge tow may also be referred to as “tow” throughout the PWS.

The contractor shall provide the following:

2.2.1. Tug

The tugs offered under this contract shall be suitable in design and power to properly, timely and safely navigate all traffic areas designated herein, and transport two tank barges as part of a tow.

2.2.2. Tank Barge

The term tank barge or “barge”, for this acquisition, is defined as a single 25,000 bbl tank barge. The tank barge capacity shall not exceed 30,000 bbls and shall be calibrated to at least 25,000 bbls and must be calibrated up to its maximum safe fill capacity. The barge(s) shall have a stern manifold configuration.

2.2.2.1. Tank Barge Tow Defined

The term tank barge tow or “tow”, for this acquisition, is defined as two 25,000 bbl tank barges navigated by one tug. Each tow shall consist of two (2) tank barges with a total calibrated capacity of 50,000 barrels. An individual tank barge should be calibrated to at least 25,000 barrels and each tank barge shall not exceed a 30,000 barrel capacity. Three tank barge tows are required for this contract. This contract also requires one additional on-call tank barge

tow.

The contractor is responsible for all costs associated with positioning the equipment at the initial loading point. Fuel cost for services performed will be reimbursed in accordance with Appendix C, Paragraph C.3, Bunker Fuel Reimbursement.

2.2.2.2. On-Call Tow

This service will be ordered separately as a modification to the contract and priced within the Schedule of Supplies and Services. The Government will have the option to add or terminate the on-call tow as traffic patterns change or as loading/discharging ports are added. The on-call tow must be of the same capacity as those listed in paragraph 2.2.1. and 2.2.2.

The contractor shall provide for one (1) on-call tow when requested by the Government with a minimum of 15-calendar days' notice. The on-call tow will be ordered in monthly increments. The Government may terminate the on-call tow with a minimum of 15 calendar days' notice if the tow is no longer required. Barge and tug requirements shall be consistent within the parameters as provided in paragraph 2.2.1. and 2.2.2. The equipment shall meet all Government inspection requirements addressed in paragraph 2.4 and related sub -paragraphs (2.4.1 and 2.4.2) and shall remain in scheduled service until the end date of the requested service or until a suitable equivalent replacement is positioned by the contractor and inspected and accepted by the Government.

Scheduled service is defined as the start and end date of the requested service and includes all supplies, materials, equipment, and personnel necessary to perform the services addressed in this PWS as authorized by the Contracting Officer (CO). Payment will not commence until the tow is made available at the initial loading point, as specified in the contract modification, and will end on the last day of requested service upon cargo discharge at the destination point. Any subsequent changes to schedule details (e.g., date, loading port) required for expedience of the Government shall occur only upon modification of the contract by the CO. Otherwise, the contractor is responsible for all costs associated with positioning the equipment at the initial loading point. Payment for the on-call services will be in accordance with the prices listed in the Schedule of Rates.

2.2.3. Self-Certified Letter

The Contractor shall provide a letter self-certifying its equipment possesses the required United States Coast Guard (USCG) certificates to operate in US ocean, coastal and inland waterways and that it will also comply with all USCG regulations and applicable licenses and insurances during the life of the contract performance.

2.2.3.1. Cargo Pumping System

A cargo pumping system with necessary hoses and connections capable of completely discharging and stripping the cargo tanks without outside power or assistance from the shore. The contractor shall load/discharge at a minimum average rate of 2,000 barrels per hour (BPH) at a pressure of 100 pounds per square inch (PSI) from the barge manifold including quantities stripped from cargo tanks.

2.2.3.2. Cargo Tank Stripping System

An independent cargo tank stripping system capable of stripping all but a maximum of two barrels of product per cargo tank, not to exceed 10 barrels for the entire barge. The discharge rate during tank stripping operations may be less than the minimum rates stipulated above.

2.2.3.3. Water Stripping System

An independent water stripping system (free from use of barge pumps, lines, or hoses) capable of removing all water from each cargo compartment, separate from the cargo tank stripping system for removal of large amounts and/or residual water discovered on vessel(s), prior to load/discharge of cargo. All water and cargo tank stripping and discharge lines shall be fully visible from the deck.

In the event a large amount of water is discovered on the barge, the contractor and Quality Assurance Representative (QAR) will investigate to determine the source and cause of the water. If the USG did not cause the intake of water e.g., intake of seawater, then the contractor shall assume removal costs.

2.2.3.4. Gauge Point Marks and Calibration

Permanent gauge point marks with reference height immediately visible from the tank gauging point (detailed requirements in American Petroleum Institute (API) Manual of Petroleum Measurement Standards (MPMS)).

Calibration Charts for gauging, certified by a third party, will be used and maintained throughout the performance period. Compartments shall be recalibrated as needed (detailed requirements in the API MPMS) at the Contractor's expense.

2.2.3.4.1. Calibration Charts

The Contractor shall provide copies of the calibration charts and trim correction tables to the Government representative and the Contracting Officer Representative (COR) at the time of pre-service inspection and prior to loading/discharge operations. The Contractor shall provide the COR a list showing the maximum load capacity of each barge at safe draft, updated whenever equipment or regulation or traffic area depths change. The Contractor shall develop and maintain, for Government use or inspection upon request and make available on board hired equipment, a Vessel

Experience Factor (VEF) comparing the history of shore quantity measurement figures against loading and discharging vessel quantity measurement figures. This VEF shall be used to correct the vessel ullage report. Anytime the physical structure of a barge is changed, due to damage or equipment modification, the barge shall be strapped again, and a new set of gauging charts and trim correction tables provided at no cost to the Government.

Deliverable: Calibration Charts, Trim Correction Tables, and VEF Records

2.2.3.5. Barge Tanks

Barge tanks shall be constructed of stainless steel or carbon steel that has been epoxy coated with a non-coal tar based grade of epoxy, or uncoated mild steel tanks. If uncoated mild steel tanks are offered, then no metals shall be used that adversely affect Product Quality.

2.2.3.6. Steel Valves

Steel valves shall be an integral part of all barges used in the performance of this contract. No metals shall be used that adversely affect Product Quality.

2.2.3.7. Spill Rails

Spill rails are required on all barges.

2.2.3.8. Sectional Fuel Delivery Hose

When required, the contractor shall provide up to 200 feet of sectional fuel delivery hose (ship or dock hose) and compatible coupling attachments (flanges, valves) necessary for over-the-water fuel loading to ships or other marine vessels. The contractor shall ensure that sectional fuel delivery hose(s) are clean and free from any condition that would contaminate or degrade cargo. The contractor is liable for any damage or loss resulting from faulty equipment or caused by contractor negligence.

2.2.3.9. Barge Lightering Operation

The contractor's equipment must be capable of safely transferring between barges at a suitable and mutually agreed upon secure berth. The contractor's barge lightering plan must be approved by the USCG prior to lightering operations.

2.3. Contractor Owned or Leased Equipment

The contractor shall own the equipment performing the transportation service or the contractor shall have the equipment under long-term lease for the duration of the contract period to include the base year and all option years (commitment or explicit arrangement that will be in existence at the time of contract award, to rent, purchase, or otherwise acquire the needed facilities, equipment, or other resources).

2.4. Barge Inspection and Acceptance

At the start of this contract, the contractor shall provide tug and barge equipment that conforms to the specifications of this contract and that passes the Government's loading inspection. Government inspection and acceptance of the contractor's equipment is a condition precedent to the Government's obligation to pay the monthly rates set forth in the Schedule of Rates. The monthly rates do not go into effect, and the Government incurs no obligation to make monthly payments, until the QAR has approved the Contractor's equipment for loading in accordance with paragraphs 2.4.1. Performance Objective - Pre-Service Inspection, 2.4.2. Suitability to Load/Discharge, and 3.1.1.1. Temporary Patching/Repairs and the COR has notified the CO the vessels are ready for service.

2.4.1. Performance Objective - Pre-Service Inspection

Not later than 15 calendar days prior to the start of the contract, the Contractor shall make its tugs and barges available for inspection and acceptance by the Government at the loading point, or other coordinated location, as specified by the COR. If the Contractor fails to provide conforming equipment by this deadline, the COR will notify the CO for action. Tank barge tows must be presented cleaned, gas free, and free of temporary patches. The Contractor shall provide a valid marine chemist certificate to the QAR at the time of or prior to inspection. Contractor shall ensure that all cargo and vent lines have been drained of previous cargo and prepared in accordance with MIL-STD-3004-1 (latest version) Minimum Requirements for the Preparation of Barge Cargo Tanks. All cargo tanks and bulkheads shall be free of water, loose rust, sludge, mud, silt, and foreign objects. The Contractor shall take a sample of rust scale from inside of the cargo tank(s) and have it tested to determine the potential effects of the corrosion and gum characteristics on the cargo to be loaded. Contractor shall provide copies of the test results to both the COR and QAR prior to Government inspection. NOTE: Rust scale sample is not required if the entire cargo tank(s) is epoxy coated and coating is free of blistering, bubbling, peeling, cracking, etc. The contractor shall prepare the barge for inspection at its own expense. Acceptance of the equipment by the Government shall in no way be construed to attest to the seaworthiness of the barge or to other requirements of the U.S. Coast Guard. The QAR shall issue written confirmation of acceptance of equipment through the COR by close of business (COB) the day the equipment is accepted. Once inspected, the tug and barge equipment will be considered to have entered into scheduled service on this contract. The equipment provided by the Contractor and any costs associated with the pre-inspection shall be at no additional cost to the Government.

Deliverable: Valid Marine Chemist Certificate, Sample of Rust Scale Test Results

2.4.2. Suitability to Load/Discharge

At each load or discharge port, the contractor shall certify that barge cargo tanks are suitable for loading or discharging the intended cargo by including the following statement in the Notice of Readiness (NOR): "All compartments, lines and pumps to be used are suitable for loading and delivering the intended cargo." Contractor shall also provide an acceptable inventory form to the QAR with cargo tank(s) soundings of product/water onboard and calculated onboard quantities/remaining onboard (OBQ/ROB) prior to loading/discharge.

Deliverable: Inventory form with OBQ/ROB.

2.5. Maintain, Position, and Operate Equipment

The contractor shall maintain, clean (including slop tanks), repair, position and operate its equipment to ensure its performance under the contract, including providing fuel to operate the tug and barge pump engines. All crew living provisions, if incurred, will be the contractor's responsibility.

2.6. Performance Objective - Provide a USCG Endorsed Tankerman

The contractor is responsible for following all governing regulations and statutes in providing the required USCG endorsed tankerman at all loading and discharge points required to perform all operations including tandem load and discharge.

2.7. TWIC Card

The contractor is responsible for obtaining a Transportation Worker Identification Credential (TWIC) card for access to all ports under this contract, where required.

SECTION 3 CONTRACTOR TASKS AND DUTIES

3.1. Cargo Delivery Services

3.1.1. Performance Objective - Loading or Discharging Cargo

Upon arrival at a loading or discharge port, the Contractor shall load or discharge any quantity of cargo, entire or partial, as specified by the COR/Supply Planner.

3.2. Responsibility for Cargo

3.2.1. Loss or Contamination Liability

The contractor shall sign the DD Form 250-1, Tanker/Barge Material Inspection and Receiving Report, or Invoicing, Receipt, Acceptance, and Property Transfer (iRAPT) Energy Receiving Report (ERR), as its receipt for the Government property it received for transportation. The contractor assumes full liability for and agrees to reimburse the Government for the actual loss or contamination to the cargo it receives for transportation, except when loss and/or damage arises out of causes beyond the control of and without the fault or negligence of the contractor such as acts of God or force majeure.

The contractor may also be held liable for loss of Government product in its possession during transportation and prior to discharge. If investigation by the Government determines that the cause is due to negligence on the Contractor or their representatives, then the loss amounts will be used for claim purposes by the Government.

3.2.2. Gauging

Contractor representative personnel are responsible for performing gauging of the vessel in accordance with API MPMS Chapter 3.1, Standard Practice for the Manual Gauging of Petroleum and Petroleum Products. Vessel temperatures will be obtained in accordance with API MPMS Chapter 7, Temperature Determination. Quantity determinations will be obtained in accordance with API MPMS Chapter 12.1, section 1, Part 1, Calculation of Static Petroleum upright cylindrical tanks and marine vessel. Gauges and temperatures will be obtained with equipment which meets API calibration requirements and are traceable to the National Institute of Standards and Technology. The contractor shall ensure that responsible contractor representative personnel are readily available for gauging operations so as to not unduly delay release and departure of the equipment. The contractor shall ensure that a vessel ullage report, acceptable to the Government, is annotated/completed at both the loading and discharge locations.

3.2.3. Carry Away Liability

The contractor shall be liable for all measurable product carried away due to failure of the contractor's equipment to discharge the cargo completely, excluding product remaining in equipment lines, manifolds, and sumps. Liability is based on the procurement and transportation cost of the cargo carried away and is to be deducted from the contractor's monthly invoice.

However, the contractor is not liable for carry-away cargo if the Tanker/Barge Material Inspection and Receiving Report (DD Form 250-1)/iRAPT ERR and the Vessel Ullage Report establish that the cargo carried away remains on board when the same equipment is utilized for subsequent loading. The Government will file a claim for measurable cargo carried away at the end of the contract period.

3.2.4. Contamination or Degradation Liability

If contamination or degradation of Government cargo occurs due to the contractor's failure to properly maintain its equipment and/or Contractor's negligence, the contractor shall be liable to the Government for replacement costs and/or associated costs with returning the cargo to specification to include any product already in the shore tank that may have been contaminated as a result of the contaminated cargo.

3.2.4.1. Performance Objective – Cleaning to Prevent Contamination or Degradation of Cargo

The contractor shall ensure that all equipment is clean and free from any condition that would contaminate or degrade cargo. The Government will reimburse the contractor for cleaning expenses only when the contractor can demonstrate that the equipment was contaminated due to the fault of the Government, the cleaning is directed by the Government to change grades of cargo transported, or when directed by the Government to complete cleaning for routine maintenance. The Contractor should submit a third-party invoice for the cleaning. Cleaning reimbursement shall be paid as an out-of-pocket expense.

3.2.4.2. Minimum Requirements for the Preparation of Barge Cargo Tanks

Comply with MIL-STD-3004-1C Change 1 (latest version), Minimum Requirements for the Preparation of Barge Cargo Tanks. Any product change procedure not specifically addressed by the table must be approved in advance by DLA Energy-AQ and/or DLA Energy AME Quality Manager.

3.3. Reporting and Communication

The Contractor shall maintain contact with the COR, the various consignors, consignees, and the Government Quality Surveillance Representative to ensure prompt and efficient cargo movement, and shall provide position and status reports and communication regularly to the COR and others, as required. The COR contact information will be provided prior to contract start date.

3.3.1. Performance Objective – Daily Equipment Position and Status Reports

The contractor shall transmit daily electronic mail equipment position and status reports to the COR and applicable inventory managers reflecting the position and status of the barge by 0900, Central Time, plus or minus one hour.

Deliverable: Daily Equipment Position and Status Reports

3.3.2. Performance Objective – Pre-Arrival Reports

The contractor shall provide pre-arrival reports to the next port of call (Government representatives) immediately upon departure of the present port, and at a minimum of 24, 12, and 3 hours prior to arrival.

Deliverable: Pre-Arrival Reports

3.3.3. Performance Objective - Readiness Notice

The contractor shall provide a written Notice of Readiness (NOR) documentation to load/discharge to designated loading and discharging officials immediately upon the tow's arrival at the loading/discharging terminal of the port complex. The following statement shall be included on all NOR documents as a minimum: "All compartments, lines and pumps to be used are suitable for loading and delivering the intended cargo." In the event the tow is not allowed to immediately proceed to the loading/discharging berth, the contractor shall communicate the NOR to the terminal by fax, email, or telephone to document its arrival. Faxing, emailing or telephone communications does NOT alleviate contractor's responsibility/compliance to provide written NOR to officials upon arrival at any port complex.

Deliverable: Notice of Readiness with suitability statement

3.3.4. Performance Objective - Cargo Documentation

The contractor shall maintain and present a copy of all loading documents, DD Form 250-1/iRAPT ERR, including Vessel Ullage Report and NOR documentation for Government use at each discharge port. Failure of the contractor to present the listed forms to discharge port(s) personnel will result in a performance failure.

Deliverable: Cargo Documentation

3.4. Performance Objective – Required Delivery Date (RDD)

The Contractor shall deliver all cargo by the Required Delivery Date (RDD) specified in the accepted schedule. If the Contractor experiences delays during movement, the Contractor shall contact the Contracting Officer's Representative (COR). The COR will review and validate reason for delay and take further action, as needed.

Deliverable: Cargo delivered by RDD

3.5. Responsibility for Damage to Government Property

3.5.1. Damage Due to Contractor Negligence

The contractor shall be responsible for lost cargo in route, such as a spill. Lost cargo shall be measured and documented on DD Form 250-1/iRAPT ERR and barge ullage sheets. The Government reserves the right to witness any measurement or gauging of product in determining lost cargo.

3.5.2. Prevent Damage to Facilities

The contractor shall be responsible for removing equipment, including unattended barges, during weather conditions that may result in damage to Government or contractor-owned facilities. The contractor shall be responsible for removing equipment when directed by the loading/discharging terminal or paying for damages caused as a direct result of contractor's decision to remain at pier side during extreme weather conditions or natural disasters.

3.5.3. Damage and Loss Reports

During operation under this contract, in all instances where cargo, contractor's equipment, or private/ Government property is damaged, lost, or pilfered while in the care, custody, or possession of the contractor or through handling by the contractor's employees, agents, or subcontractors, the contractor shall submit a full written report of the facts and the extent of such damage or loss to the COR within 24 hours following the occurrence or discovery. Details shall include how the damage occurred, investigation detail, and an estimate of how and when reimbursement for damages will occur.

3.6. Quality and Performance

The Government and the contractor will operate as a team to assure a high standard of quality is established and maintained in the performance of the contract. This will include Government measurement and surveillance of the contractor's performance to document and recognize instances of superior contractor performance, and to identify areas falling short of required performance standards early so that the contractor and the Government may work together to identify causes and eliminate problems before they become serious. The Government's performance measures and the contractor's Quality Control (QC) program requirements are described below.

3.6.1. Contractor Quality Control, Reporting and Records

3.6.1.1. Performance Objective - Quality Control Plan

The contractor shall establish and maintain a Quality Control Plan (QCP) to ensure quality service is provided throughout the terms of the contract. The contractor shall submit an acceptable QCP prior to the first shipment. The QCP shall be approved by the QAR prior to the first shipment and updated when deemed necessary by the contractor or the Government to include changes necessary to prevent the recurrence of quality problems. The contractor must sign and date the original QCP, as well as each subsequent revision. Revisions shall also be presented to the QAR for review and acceptance prior to implementation. The QCP shall include as a minimum how the contractor intends to meet the performance objectives, provide cargo free of contamination or degradation, identify those areas the contractor sees as critical to the customers for this contract, how it will monitor quality performance in those areas, and how it will maintain or exceed customer expectations, including identification and correction of problems.

Deliverable: QCP

3.6.1.2. Problem/Failure

The contractor shall self-identify any problem or failure that may impact contract performance. In accordance with its QCP, the contractor shall notify the COR/ DLA Energy AME immediately of the problem, and within two (2) business days provide to the COR/ DLA Energy AME a succinct written plan of action of contractor self-identification or awareness of a potential or real problem, failure or deficiency. The contractor shall detail the methodology for correcting the problem or deficiency in the plan of action, and provide an assurance of the specific time required to bring performance back to acceptable quality levels, as applicable.

3.7. OSHA Compliance

The contractor shall establish and maintain an effective and comprehensive safety program that complies with the provisions of the Occupational Safety and Health Act and the National Institute of Occupational Safety and Health. The contractor shall acquire, maintain, and require the use of safety equipment, personal protective equipment, and devices necessary to protect employees. The contractor shall be responsible for compliance with the Occupational Safety and Health Act of 1970, as amended, and for penalties resulting from violations.

3.8. Additional Regulations Compliance

The contractor shall maintain and operate all equipment in accordance with applicable USCG, federal and state laws, and military regulations, including applicable regulations of the Commander, Defense Logistics Agency Energy (DLA-Energy), and shall also be in compliance with all of DLA's fuel supply terminal requirements for barge tows. Contractor is responsible for the costs of vetting all equipment at every location prior to loading or discharge. All contractors shall comply with the provisions of the Jones Act, as amended. Compliance with the following regulation is mandatory:

DOD 4500.9-R, Defense Traffic Transportation Regulation (DTR) Part II, 29 February 2024 Note: DOD 4500.9-R can be accessed through the following web site, <https://www.ustranscom.mil>. Follow the link to Defense

Transportation Regulations. If you have any questions or need assistance in obtaining access to the link, contact DLA-Energy/FENBA at (571)767-9289.

3.8.1. Defense Biometric Identification System (DBIDS) Card

The contractor is responsible for obtaining a Defense Biometric Identification System (DBIDS) card for all ports, where required.

Guidance and SECNAV 5512/1 application can be accessed through the following web site,
<https://www.cnmc.navy.mil/om/dbids.html>

3.9. Accidents, Death or Injury to Personnel

In all instances where there is an accident and/or where contractor's employees are absent due to injury or death or for purposes of receiving medical attention due to an injury during or arising from performance under this contract, the contractor shall submit a full written report of the facts and the extent of such injury to the COR within 24 hours. If an investigation of the accident is conducted, the contractor shall assist the investigator in securing statements from its employees and must make pertinent records available to the investigator and to the COR.

3.10. Insurance Requirements

3.10.1. Cargo Insurance

The contractor shall purchase and maintain cargo insurance at its own expense, as required by law, and in an amount at least equal to the value of the cargo transported.

3.10.2. Liability, Pollution and Environmental Insurance

Contractor shall provide at its own expense, the appropriate amount of insurance as required by law in all its jurisdictions that it will be operating. Contractor is responsible for all damage costs not covered by insurance.

3.11. Maintenance.

3.11.1. Temporary Patching/Repairs

Barges shall not be accepted for loading if there is evidence of concrete patches or other temporary repairs. However, the contractor may use temporary repairs only until the barge can return to a point where permanent repairs can be made if the need for repair occurs after loading. Any repairs that are part of or immediately adjacent to the cargo system will require notification to and inspection by QAR. Furthermore, contractor shall notify the COR and QAR, by electronic mail of all repairs when load/discharge schedule, or transit times are affected.

3.11.2. Scheduled/Required Maintenance

Maintenance or repair periods shall not exceed 24 hours in duration, except when required for USCG inspections or when mutually agreed between the Government and the contractor (e.g. periodic maintenance). The contractor shall provide notice of scheduled maintenance at least 24 hours prior to the date the maintenance is scheduled.

Deliverable: Scheduled Maintenance Notification

3.11.3. Substitute Equipment.

The COR must approve all substitutions of equipment, provided the substitute equipment is equivalent to the contractor's original equipment (i.e., meets the specifications and requirements in Section 2, General Requirements, Contractor Furnished Equipment and Crew). The Government shall inspect the substitute equipment prior to placement into service. The substitute equipment provided by the Contractor shall be at no additional cost to the Government.

3.11.3.1. Substitute Equipment Pre-Inspection Notice

The contractor must notify the COR at least seven calendar days in advance of any equipment changes. The Contractor shall make its tugs and barges available for inspection and acceptance by the Government at the coordinated date, time and location as approved by the COR. If the Contractor fails to provide conforming equipment by this deadline, the COR will notify the CO for action. Tows must be presented cleaned, gas free, and free of temporary patches. The Contractor shall provide a valid marine chemist certificate to the QAR at the time of or prior to inspection. Contractor shall ensure that all cargo and vent lines have been drained of previous cargo, and

prepared in accordance with MIL-STD-3004-1C Change 1 (latest version) Minimum Requirements for the Preparation of Barge Cargo Tanks. All cargo tanks and bulkheads shall be free of water, loose rust, sludge, mud, silt, and foreign objects. The Contractor shall take a sample of rust scale from inside of the cargo tank(s) and have it tested to determine the potential effects of the corrosion and gum characteristics on the cargo to be loaded. Contractor shall provide copies of the test results to both the COR and QAR prior to Government inspection. NOTE: Rust scale sample is not required if the entire cargo tank(s) is epoxy coated and coating is free of blistering, bubbling, peeling, cracking, etc. The contractor shall prepare the barge for inspection at its own expense. Acceptance of the equipment by the Government shall in no way be construed to attest to the seaworthiness of the barge or to other requirements of the U.S. Coast Guard. The QAR shall issue written confirmation of acceptance of equipment through the COR by close of business (COB) the day the equipment is accepted. Once inspected, the tug and barge equipment will be considered to have entered into scheduled service on this contract.

Deliverable: Valid Marine Chemist Certificate, Sample of Rust Scale Test Results

3.11.4. Out-of-Service Notification (OOS)

The contractor shall notify the COR immediately in the event the contractor is unable to provide service due to unscheduled non-availability of equipment or crew, and must include the location of the equipment, cargo status (loaded or empty), reason for being out-of-service, and the expected duration of disability (Temporary Out-of-Service or Long-Term Out-of-Service) in the notification.

Deliverable: OOS Notification

3.11.5. Long-Term OOS Notification

In the event the notification is for Long-Term Out-Of-Service, the contractor shall provide a substitute for any or all of the equipment or crew designated for use under this contract within 24 hours and shall specify details of the substitution in writing. The specification shall include reason for the request for the substitute equipment and if repair/maintenance action is required, provide in- depth description of repairs to be made, facility and location of repair action, and estimated date equipment shall be returned to use. If carry-away cargo is present in the barge, the Government will file a claim for the carry-away product.

Deliverables: Long Term OOS Notification, Request for Substitute Approval, and Substitute Specification

Table 1. Performance Objective - Uninterrupted Service

<u>Measure</u>	<u>Standard</u>
Cumulative Days OOS (Temporary)	No more than 10 days annually per barge.
Response For OOS (Long Term) Provision of Substitute within 24 hours	No more than two Failures to Perform annually. No more than an additional 24 hours late with substitute, without COR approval.

3.11.6. Failure to Perform

Should the contractor be unable to perform or choose not to provide substitute equipment or crews for all days beyond the first 24-hour period the contractor's equipment is out-of-service, in addition to any other remedies available to the Government under this contract, the Government may take a pro rata deduction from the contractor's monthly invoice for each hour beyond the first 24-hour period.

The sample excess re-procurement calculation, shown below in Table 2 uses the following information:

Contract rate: \$10,000/day; \$416.66/hour

Table 2. Sample Calculation - Excess Re-Procurement Costs

<u>Date and Time</u>	<u>Event</u>	<u>Formula Calculation</u>	<u>Cost</u>
05 January at 10:00	Contractor equipment goes OOS	None. Within 24-hour period.	None
06 January at 10:00	Contractor equipment remains OOS, unable to provide substitute equipment.	Calculation begins, 24-hour window has expired.	

06 January at 11:00	Decision made to procure substitute equipment for period 08 to 13 January.	\$10,000/day x 6 days (\$416.66/hour)	\$60,000 Cost
08 January at 08:00	Substitute equipment begins loading.		
08 January at 15:00	Contractor equipment submitted for inspection prior to return to service.		
08 January at 20:00	Contractor equipment returned to service.		
	Deduction from invoice.	58 hours x \$416.66/hr. (10:00 on 06 January through 20:00 on 08 January)	\$24,166.28
	Re-procurement costs.	7 hours x \$416.67/hr.* <i>*Rate is calculated by subtracting the contract equipment rate from the substitute equipment rate, e.g. \$833.33-\$416.66)</i>	\$2,916.69
TOTAL PRO-RATA DEDUCTION FOR FAILURE TO PERFORM			\$27,082.97

SECTION 4 DELIVERABLES

4.1. Deliverables

A deliverable is a specific measurable, tangible, and verifiable activity, outcome, result, item, or product that the contractor shall provide and that will require formal Government acceptance and approval. The Government will review, assess and provide comment, as required.

4.2. Deliverable Submissions

The contractor shall deliver reports and data as set forth in the below table. All deliverables shall be submitted electronically via e-mail to the COR, QAR, and any others as identified within the PWS. The contractor shall prepare and submit all deliverables electronically in Microsoft Office (i.e., Word, Excel, PowerPoint, Project, etc.) formats pursuant to the following schedule. Deliverables will be identified by task order number, PWS subtask, and deliverable title.

Table 3. Deliverable Schedule

<u>Task</u>	<u>Deliverable</u>	<u>Deliverable Schedule</u>	<u>Recipient</u>
2.2.3.4.1.	Calibration Charts, Trim Correction Tables, and VEF Records	To be provided at loading and discharge ports every delivery	QAR
2.4.1. and 3.11.5.1.	Valid Marine Chemist Certification; Sample of Scale Test Results	Prior to inspection and acceptance	QAR
2.4.2.	Inventory form with OBQ/ROB	Prior to loading/discharge	QAR
3.3.1.	Daily Position Reports	0900 CT, plus or minus one hour	COR
3.3.2.	Pre-Arrival Reports	Upon departure of the present port, and at a minimum of 24, 12, and 3 hours prior to arrival	QAR, Terminal
3.3.3.	Notice of Readiness with suitability statement	Immediate Upon Arrival at the loading/discharging terminal of the port complex	QAR, Customer
3.3.4.	Cargo Documentation	Documents at Load and Discharge Port(s)	QAR, Customer
3.4.	Required Delivery Date (RDD)	COR/QAR validated on-time delivery	COR, QAR
3.6.1.1.	QCP	Final copy prior to the first shipment and after each revision.	QAR

3.11.2.	Scheduled Maintenance Notification	Provide notice of scheduled maintenance with expected duration of maintenance not less than 24 hours before date of schedule	COR
3.11.3.	Out-of-Service (OOS) Notification	Immediately notify the Government the event that service equipment is unavailable.	COR
3.11.4.	Long Term OOS Notification, Request for Substitute Approval, and Substitute Specification	Provide details of the substitution in writing within 24 hours.	COR
Appendix C; Paragraph C.2	Out-of-Pocket Expenses Documentation	Contractor shall initially pay the charges and submit the third party invoice to the Government for reimbursement with its next regular monthly invoice	COR
5.3.	Cyber-Incident Reporting	NLT 72-hours after discovering cyber-incident	USTC, DDOC

4.3. Final Acceptance

Final inspection and acceptance of all work performed, reports, or other deliverables shall be performed at the place of delivery. The COR will notify the contractor of deliverable acceptance or provide comments, in writing, and the contractor, if necessary, shall revise and resubmit the final deliverable to the COR within three business days (unless otherwise specified) after receipt of COR comments.

SECTION 5 CYBER SECURITY

5.1. Operationally Critical Support

The services designated under this contract are “operationally critical support” as defined in DFARS 252.204-7012.

5.2. Cybersecurity Incident Reporting

5.2.1. In addition to the DFARS 252.204-7012 reporting requirements for unclassified systems and DoD Manual (DoDM) 5220.22, *National Industrial Security Program Operating Manual (NISPOM)* for classified systems, reportable cyber-incidents include, but are not limited to, the following:

5.2.1.1. Cyber-incidents as defined in Table 1.

5.2.1.2. Notifications by a federal, state, or local law enforcement agency or cyber-center (i.e., National Cyber Investigative Joint Task Force (NCIJTF), National Cybersecurity & Communications Integration Center (NCCIC)) of being a victim of a successful or unsuccessful cyber-event, anomaly, incident, insider threat, breach, intrusion, or exfiltration.

Table 1. Cyber-Incidents

<u>Incident Category</u>	<u>Description</u>
Root Level Intrusion	Unauthorized privileged access to an IS. Privileged access, often referred to as administrative or root access, provides unrestricted access to the IS. This category includes unauthorized access to information or unauthorized access to account credentials that could be used to perform administrative functions (e.g., domain administrator). If the IS is compromised with malicious code that provides remote interactive control, it will be reported in this category.
User Level Intrusion	Unauthorized non-privileged access to an IS. Non-privileged access, often referred to as user level access, provides restricted access to the IS based on the privileges granted to the user. This includes unauthorized access to information or unauthorized access to account credentials that could be used to perform user functions such as accessing Web applications, Web portals, or other similar information resources. If the IS is compromised with malicious code that provides remote interactive control, it will be reported in this category.

Denial of Service	Denial of Service (Incident)—Activity that denies, degrades, or disrupts normal functionality of an IS or DoD information network.
Malicious Logic	Installation of software designed and/or deployed by adversaries with malicious intentions for the purpose of gaining access to resources or information without the consent or knowledge of the user. This only includes malicious code that does not provide remote interactive control of the compromised IS. Malicious code that has allowed interactive access should be categorized as Root or User Level Intrusion incidents. Interactive active access may include automated tools that establish an open channel of communications to and/or from an IS.
Ransomware	Malware designed to encrypt files on a device, rendering any files and the systems that rely on them unusable. Malicious actors then demand ransom in exchange for decryption. Ransomware actors often target and threaten to sell or leak exfiltrated data or authentication information if the ransom is not paid. Ransomware is a reportable incident that may be associated with multiple incident categories depending on the attack vector and execution.

5.2.2. If the cyber-incident affects a classified system, vulnerabilities associated with the incident will be classified per the current version of USTRANSCOM Instruction 31-02, Security Classification Guide.

5.3. Cybersecurity Incident Reporting Timelines

In addition to providing the notification required by DFARS 252.204-7012, the contractor is required to notify USTRANSCOM as soon as practical, but no later than 72 hours after discovering a reportable cyber-incident. The reporting timeline begins when the incident is discovered or reported to the company, its employees, contractors, or cybersecurity firm responsible for providing cybersecurity and response for the company. The contractor shall contact the USTRANSCOM Cyber Operations Center (CyOC) via phone at 618-817-4222. If the contractor does not immediately reach the CyOC via phone, the contractor shall send an email notification to transcom.scott.tcj6.mbx.cyoc-dodin-operations@mail.mil.

5.4. Mandatory Reporting Data

5.4.1. The contractor shall work with the USTRANSCOM CyOC through resolution of the incident. Within 72 hours of becoming aware of a reportable cyber-incident, the contractor shall provide an initial notification of the incident, even if some details are not yet available, which includes, but is not limited to, the following information:

- (a) Company Name
- (b) Who will be the POC with contact information
- (c) Contracting Officer POC (name, telephone, email)
- (d) Overall Assessment –Description of incident, data at risk, mitigations applied
- (e) Indicators of compromise
- (f) Vector of attack (if known)
- (g) Estimated time of attack (if known)

5.4.2. The contractor shall provide a follow-on cyber-incident report to the USTRANSCOM CyOC within 5 days of becoming aware of a reportable cyber-incident, which includes, but is not limited to, the following information:

- (a) Contractor unique Commercial and Government Entity (CAGE) code
- (b) Contract numbers affected
- (c) Facility CAGE code where the incident occurred if different than the prime Contractor location
- (d) POC if different than the POC recorded in the System for Award Management (name, address, position, telephone, email)
- (e) Contracting Officer POC (name, telephone, email)
- (f) Contract clearance level
- (g) DoD programs, platforms, systems, or information involved
- (h) Location(s) of compromise
- (i) Date incident discovered
- (j) Type of compromise (e.g., unauthorized access, inadvertent release, other)
- (k) Description of technical information compromised

(l) Any additional information relevant to the information compromise

5.5. Incident Reporting Coordination

5.5.1. In the event of a cyber-incident, USTRANSCOM may conduct an on-site review of network or information systems where DoD information is resident on or transiting to assist the contractor in evaluating the extent of the incident and to share information in an effort to minimize the impact to both parties. Date and time of on-site visits will be mutually agreed upon by USTRANSCOM and the contractor in advance.

5.5.2. The contractor agrees to allow follow-on actions by the Government (e.g., USTRANSCOM, Federal Bureau of Investigation, Department of Homeland Security, DC3, etc.) to further characterize and evaluate the suspect activity. The contractor acknowledges that damage assessments might be necessary to ascertain an incident methodology and identify systems compromised as a result of the incident. Once an incident is identified, the contractor agrees to take all reasonable and appropriate steps to preserve any and all evidence, information, data, logs, electronic files and similar type information (reference NIST Special Publication 800-61, Computer Security Incident Handling Guide, (current version)) related to the incident for subsequent forensic analysis so that an accurate and complete damage assessment can be accomplished by the Government.

5.5.3. The contractor is not required to maintain an organic forensic capability, but must ensure data is preserved (e.g., remove an affected system, while still powered on, from the network) and all actions documented until forensic analysis can be performed by the Government or, if the Government is unable to conduct the forensic analysis, a mutually agreed upon third party (e.g., Federally Funded Research and Development Center (FFRDC), commercial security contractor, etc.). Any follow-on actions shall be coordinated with the contractor via the Contracting Officer.

5.5.4. The contractor agrees to indemnify and hold the government harmless for following any recommendations to remedy or mitigate the cyber-incident following the actions under 5.5.1. and 5.5.2.

5.6. Confidentiality and Non-Attribution Statement

The Government may use and disclose reported information as authorized by law and will only provide attribution information on a need-to-know basis to authorized persons for cybersecurity and related purposes (e.g., in support of forensic analysis, incident response, compromise or damage assessments, law enforcement, counterintelligence, threat reporting, and trend analysis). The Government may share threat information with other USTRANSCOM industry partners without attributing or identifying the affected contractor.

APPENDIX A LOADING/DISCHARGING POINTS

Below list represents current and historic information. Loading/Discharging points may be added or deleted as fuel procurement award patterns change.

Fuel Loading/Discharge Ports

JAA Loading Ports

Exxon/Mobil Company, USA, Baton Rouge, LA
Valero, Texas City, TX
Placid Refining, Port Allen, LA
Goldline, Jennings, LA
BP, Texas City, TX
Shell, Saraland, AL
Shell, Deer Park, TX
Magellan Midstream Partners LP, Galena Park, TX
Valero, Corpus Christi, TX
Air BP, Texas City, TX
Petromax, Channelview, TX
Mansfield Oil Company, Vertex Blakeley Island, AL
Small Town Oil Company, Phillips 66 Refinery, Westlake, LA
DFSP Houston, Galena Park, TX
BPPNA, Galena Park, TX
Lazarus Energy Holdings, LMTI, Ingleside, TX
Lazarus Energy Holdings, MTO, Ingleside, TX
VetJet Fuels LLC, Corpus Christi, TX

JAA Discharge Ports

Naval Air Station, Belle Chase (New Orleans), LA
Eglin Air Force Base, Fort Walton Beach, FL
Hurlburt Field, Fort Walton Beach, FL
Tyndall Air Force Base, Panama City, FL
Naval Air Station Pensacola, Pensacola, FL
Magellan Midstream Partners LP, Galena Park, TX
DFSP Houston, Galena Park, TX

F76 Loading Ports

Mansfield Oil Company, Vertex Blakeley Island, AL
Lazarus Energy Holdings, LMTI, Ingleside, TX
Lazarus Energy Holdings, MTO, Ingleside, TX
Valero Marketing & Supply, Port Arthur, TX

F76 Discharge Ports

DFSP Houston, Galena Park, TX

JP5 Loading Ports

Lazarus Energy Holdings, LMTI, Ingleside, TX
Lazarus Energy Holdings, MTO, Ingleside, TX
Valero Marketing & Supply, Port Arthur, TX

JP5 Discharge Ports

DFSP Houston, Galena Park, TX

APPENDIX B GOVERNMENT RESPONSIBILITIES

B.1. COR / DLA Energy AME Supply Planner Responsibilities

The COR or DLA Energy Supply Planner will perform the following:

B.1.1. Cargo Routing

Issue cargo routing instructions to shippers.

B.1.2. Order Services

Order all loading and unloading services and schedule all movements.

B.1.3. Contact Information

Furnish the contractor with the names and appropriate telephone numbers, of persons designated as the Government's ordering, inspecting, and receiving representatives upon award of the contract.

B.1.4. Acknowledge Receipt

Acknowledgement of receipt shall be completion of the DD-250-1, or iRAPT (PIEE) Energy Receiving Report (ERR) and barge ullage documentation consisting of location, date of arrival, barge name/number, and cargo number and shall provide for signature by both a contractor representative and a designated Government representative. (See Appendix F)

B.1.5. Measure, Verify, and Document Cargo

Arrange for measurement, verification, and documentation of all measurable cargo remaining aboard barges at loading and unloading ports. In accordance with Section 3.2.3. Carry Away Liability, deduct from the next monthly invoice, the value of cargo carried away. Charges would apply only when barge equipment is changed or product carried changes.

B.1.6. Notify Receiving Activities

Notify the receiving activities of the scheduled arrival of the barge, including estimated date and time of arrival, barge name/number, and cargo number. However, this action does not relieve the contractor of their responsibility to provide 24, 12, and 3-hour notification and to present a completed written copy of the NOR documentation to personnel at receiving activities. (Reference PWS 3.3.2)

B.1.7. Equipment Inspections

Arrange pre-service inspections of contractor equipment to document compliance with the requirements of this contract and to otherwise ensure suitability thereof for the performance of this contract, including the acceptance of DoD-owned fuels. The Government inspections or failure to inspect does not relieve the contractor of its liability in relation to its use of unsafe or faulty equipment or any instance of non-compliance with this contract. In no event shall a Government inspection support a contractor's assertion of reliance or waiver in defense to a claim by the Government or any third party.

B.1.8. Critical Performance Requirements

Monitor the contractor's performance using predetermined quality assurance procedures and through the Government Service Delivery Summary (SDS), Appendix E, which will be used in this program and which also describes the contract requirements considered most critical to performance.

B.1.8.1. Performance Measurement Approaches

The CO and the COR will monitor contractor performance and compliance with the terms and the conditions of the contract using the SDS and such standard techniques as inspections, Government generated management reports, contractor reports and customer feedback. The COR, in conjunction with the CO, will conduct periodic meetings with the contractor to discuss operations, and problem areas.

B.1.9. Visits

Government personnel, in addition to/other than the COR and QAR, may make announced periodic visits to the

Contractor's facilities to observe daily operations. Announced visits will follow a one (1) day prior notice to the contractor. During these visits, the contractor shall provide knowledgeable personnel to tour and inspect the areas. The CO and/or his representative will make periodic inspections.

APPENDIX C REIMBURSABLE EXPENSES

C.1. Approval

All reimbursable expenses must be reviewed in advance by the COR and approved by the Contracting Officer. The Government will not be liable for any taxes, fees, tariffs, licenses or other costs or expenses associated with performance on this contract other than those specifically referenced herein.

C.2. Out-of-Pocket Expenses — Tolls and Charges

The COR will provide a reachable safe berth for the contractor's equipment that is currently in an on-hire status at all loading and discharging ports free of dockage, wharfage, pilotage, and fleeting tolls. Allowable charges include the Ship Inspection Report Programme (SIRE). Other port charges not identified below shall require prior approval by the COR. If such charges accrue through no fault of the contractor or its employees, the contractor shall initially pay the charges and submit the paid bill to the Government for reimbursement in conjunction with its next regular monthly invoice. When fleeting or shift boats are required and there is more than one establishment in the area that can provide the service, the contractor shall use the one which offers the best value to the Government. Best value includes not only price consideration but also: whether the fleeting is in closer proximity to the load port; availability of berthing space at the respective locations, accessibility to communally used routes to the load port, etc. The contractor shall make diligent effort to safely avoid the need for fleeting wherever possible to limit costs to the Government.

C.2.1. Assist Tugs

The contractor shall be responsible for the expense of assist tugs used in transporting, berthing or maneuvering the vessel to/from docks or through locks except when such assist tugs are required by local harbor regulation or other lawful authority. The Government will reimburse the contractor for use of assist tugs only under those conditions and on the same basis as described in Section C.2. Out of Pocket Expenses — Tolls and Charges.

C.2.2. Barge Cleaning Expenses

Barge cleaning expenses claimed in accordance with Paragraph 3.2.4.1 shall be approved in advance by the COR. Authorized cleaning expenses shall be billed for reimbursement as described in paragraph C.2, Out of Pocket Expenses — Tolls and Charges.

C.3. Bunker Fuel Reimbursement

Reimbursement for Bunker Fuel consumed in performance under the contract shall be paid on an actual cost basis. Contractor shall submit a third party invoice for the bunker fuel. The basic reimbursement will be based on barge movements (loaded or empty). Any repositioning or additional movement of contractor's equipment to a cleaning facility occasioned by its having been contaminated through no fault of the contractor will be calculated and reported separately. Repositioning costs for cleaning not associated with contamination by others will not be reimbursed.

APPENDIX D DEFINITIONS

Carryaway Product	Measurable cargo remaining in cargo tanks after discharge operations and before line drop.
Contracting Officer Representative (COR)	An individual designated and authorized in writing by the CO to perform specific technical or administrative functions.
Endorsed Tankerman	Contractor personnel endorsed by the USCG to be responsible for all loading and discharging operations.
Force Majeure	Force Majeure literally means “greater force”. These clauses excuse a party from liability if some unforeseen event beyond the control of that party prevents it from performing its obligations under the contract. Typically, force majeure clauses cover natural disasters or other “Acts of God”, war, or the failure of third parties—such as suppliers and subcontractors—to perform their obligations to the contracting party. It is important to remember that force majeure clauses are intended to excuse a party only if the failure to perform could not be avoided by the exercise of due care by that party.
Innage	The portion of a cargo tank that is full of fuel.
Out-of-Pocket	Local port fees or similar charges incurred. Such fees or expenses may include those for dockage, wharfage, pilotage, fleeting, tolls, port charges, assist tugs when required by local harbor regulation, bunker fuel reimbursement, or other lawful authority, or cleaning charges.
Out-of-Service	Any non-availability of tug or barge equipment or crew, such as to preclude meeting a Government requirement. It may be either Temporary (normally less than 24 hours), or Long-Term (24 hour or greater) non-availability of equipment or crew.
Performance Requirements	Performance Requirements in this document are expressed in the following manner and may contain the following three elements: Performance Objective; Performance Measures; and Performance Standards. In each case, when taken together, these elements constitute a performance requirement.
Performance Objective	A statement of the outcome or results expected of the Contractor (not output).
Performance Measures	The critical few characteristics or aspects of achieving the objective that will be monitored by the Government; those things that the Government will analyze. Each objective may have one or more measures.
Performance Standards	The targeted level or range of levels of performance for each performance measure. Not every performance objective in this contract has a related performance measure or performance standard. However, every performance objective is a contractual requirement. For those performance objectives that do not specify a measure or standard, the measures and standards are in accordance with standard commercial practices. (i.e., substantial compliance with local customary trade practice). When not stated, Performance Standards are assumed to be one hundred (100) percent. Performance measures/standards, where specified, may be used to achieve a variety of goals, including collection of data to test the practicality of a performance standard; identification of a performance standard of less than one hundred (100) percent compliance; emphasis on most critical performance objectives; collection of data to support quality assurance and contractual remedies (including evaluation of past performance, discussion at
Quality Assurance Representative (QAR)	A Government qualified barge and fuels inspector.

APPENDIX E SERVICE DELIVERY SUMMARY (SDS)

Service Delivery Summary (SDS)

The SDS establishes the standard for satisfactory performance, and represents the most important contract objectives that, when met, will ensure contract performance is satisfactory. Although not all PWS requirements are assigned a Performance Standard in the SDS, the contractor is expected to fully comply with all requirements in the PWS. The CO will issue a Contractor Discrepancy Report when the contractor's performance is unsatisfactory. The contractor shall reply in writing within twenty-four (24) hours, giving reasons for unsatisfactory performance and identifying the corrective action(s) to be taken to prevent recurrence. The SDS is provided for the convenience of the contractor. The Government SDS does not place any additional requirements on the contractor. This tool is to be used for administrative purposes only and does not reflect a change in the contract requirements. To the extent any conflict may arise between the tool and the substantive provisions of this contract, the substantive provisions of this contract shall apply.

Table 4. Service Delivery Summary

Desired Outcome	PWS Paragraph	Performance Threshold	Source of Data	Frequency Collected	Calculation
Pre-Service Inspection	2.4.1	Inspection Prior to Service	Submitted Reports	As required	100% of equipment available for inspection NLT 15 Days Prior to initiation of transportation services
USCG Endorsed Tankerman	2.6.	Provide USCG Endorsed Tankerman at all Loading and Discharge Ports	Submitted Reports	As required	100% available at all loading and discharge ports
Preventing Cargo Contamination	3.2.4.1, 3.2.4.2.	Zero failures per year to provide equipment clean and free of contaminants	MIL-STD-3004-1C Change 1 (latest version)	As needed	# of failures per year.
Timely Daily Position Report	3.3.1.	No more than 1 late report per month.	Submitted Reports	0900 CT, plus or minus one hour.	# of late reports per month.
Cargo Documentation	3.3.3	Vessel Ullage Report & DD Form 250-1/iRAPT	Submitted Reports	As required	Provide the listed forms to the discharge port 100% of the time
Uninterrupted Service	3.11.4	No more than 10 cumulative days out of service per year, per barge.	Out of Service written notification provided within 24 hours.	As required	# of cumulative days out of service per year, per barge.
Provide timely cyber-incident reporting	5.3.	No more than 1 late cyber-incident report or unreported cyber-incident in a 12-month period.	Phone or email notification (only if unreachable by phone) with incident details	As needed	# of late or unreported cyber-incidents per year.

APPENDIX F APPLICABLE FORMS

DOD Form 250-1 (Tanker/Barge Material Inspection and Receiving Report)
<https://www.esd.whs.mil/Portals/54/Documents/DD/forms/dd/dd0250-1.pdf>